



Referendum Act 1975

1975 CHAPTER 33

An Act to provide for the holding of a referendum on the United Kingdom's membership of the European Economic Community. [8th May 1975]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Holding of
referendum.

1.—(1) A referendum shall be held on the question whether the United Kingdom is to remain a member of the European Economic Community.

(2) The question to be asked in the referendum, and the front of the ballot paper to be used for that purpose, shall be in the form set out in the Schedule to this Act.

(3) Subject to subsection (5) of this section, those entitled to vote in the referendum shall be—

- (a) the persons who, at the date of the referendum, would be entitled to vote as electors at a parliamentary election in any constituency, and
- (b) peers who at that date would be entitled to vote as electors at a local government election in any electoral area.

(4) Her Majesty may by Order in Council—

- (a) appoint a day for the holding of the referendum; and, subject to the provisions of this Act,

- (b) make such provision as to the conduct of the referendum as may appear to Her to be expedient; and
- (c) apply, in relation to the referendum, with such modifications or exceptions as may be specified in the Order, any provision of the Representation of the People Acts and any provision made under any enactment.

(5) An Order in Council under this section may make or enable the Secretary of State to make special provision with respect to persons, or any description of persons, who are members of the forces (as defined in section 46 of the Representation of the People Act 1949) or spouses of such members, and may do so differently with respect to different cases; and any provision so made—

- (a) may permit persons to whom it applies to vote in the referendum notwithstanding that they are not duly registered under the Representation of the People Acts, and, if they have or have had an address in the United Kingdom, notwithstanding that the conditions of those Acts as to residence are not satisfied; and
- (b) may enable persons to whom it applies to vote at a date earlier than that appointed under subsection (4)(a) of this section and may also enable them to vote at a polling station set up in accordance with that provision or by post.

(6) An Order in Council under this section may be varied or revoked by a subsequent Order in Council under this section; but no recommendation shall be made to Her Majesty to make an Order in Council under this section until a draft of the Order has been laid before Parliament and approved by a resolution of each House of Parliament.

(7) Section 2(1) of the Welsh Language Act 1967 (power to prescribe Welsh version) shall apply in relation to an Order in Council under this section as if the Order were an enactment.

2.—(1) The functions which, in relation to a parliamentary election, are conferred on returning officers by any provision applied by an Order in Council under section 1 of this Act shall, in relation to the referendum, be discharged (except in so far as special provision is made in pursuance of section 1(5) of this Act)—

- (a) in England and Wales, by the persons who, under section 41 of the Local Government Act 1972, are, or may discharge the functions of, returning officers at elections of councillors of districts or of the Greater London Council or, with respect to the Isles of Scilly, by the person appointed returning officer at an election of councillors;

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(b) in Scotland, by the persons who, under section 6 of the Local Government (Scotland) Act 1973, are, or may discharge the functions of, returning officers at elections of councillors for regional or islands councils;

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2095.

(c) in Northern Ireland, by the Chief Electoral Officer or the persons who, by virtue of Article 2(3) of the Local Government Reorganisation (Consequential Provisions) (Northern Ireland) Order 1973, may perform the functions of the Chief Electoral Officer at a parliamentary election.

(2) The council of any district in Scotland shall, if so requested by the council of the region in which that district is situated, place at the disposal of any officer of the latter council, for the purpose of assisting him in the discharge of any functions conferred on him in relation to the referendum by subsection (1) of this section, the services of officers employed by the former council.

(3) A separate count shall be conducted of the votes cast at the referendum in each of the areas specified in subsection (5) below, but the votes cast (in accordance with any provisions made in pursuance of section 1(5) of this Act) outside the United Kingdom shall be counted with those cast in Greater London.

(4) The Secretary of State shall appoint a person (in this Act referred to as the Chief Counting Officer) who shall, for each of the areas specified in subsection (5) below, appoint a person (in this Act referred to as a counting officer) to conduct the counting of votes cast in that area in accordance with any directions given to him by the Chief Counting Officer; and the councils of districts and London boroughs shall place the services of their officers at the disposal of the counting officers.

(5) The areas referred to in subsections (3) and (4) of this section are—

- (i) in England and Wales, Greater London, each county and the Isles of Scilly;
- (ii) in Scotland, each region and each islands area; and
- (iii) Northern Ireland.

(6) The counting officer for each area shall certify the number of ballot papers counted by him and of the respective answers given by valid votes, and the Chief Counting Officer shall certify the total of the ballot papers and respective answers; and in certifying the number of ballot papers counted each counting officer and the Chief Counting Officer shall distinguish between ballot papers issued in accordance with any special provision made in pursuance of section 1(5) of this Act and other ballot papers.

(7) The Secretary of State shall pay to the Chief Counting Officer, to the counting officers and to persons appointed to assist any counting officer such remuneration as he may, with the approval of the Treasury, determine.

3.—(1) The Lord President of the Council may, with the consent of the Treasury, make to each of the following organisations, namely—

Grants towards cost of campaign.

(a) Britain in Europe, and

(b) National Referendum Campaign;

a grant not exceeding £125,000 towards the expenses incurred by them or by organisations affiliated to them for the purposes of the referendum.

(2) A grant under this section may be made subject to such conditions as the Lord President may specify and those conditions may include the keeping and making available for publication of accounts showing such particulars as may be so specified of—

(a) the sums received or spent for the purpose of the referendum since 26th March 1975; and

(b) the persons from whom any such sums were received and the persons to whom any such sums were paid.

4. No court shall entertain any proceedings for questioning the numbers, as certified by the Chief Counting Officer or any counting officer, of any ballot papers counted or answers given in the referendum.

5. Any administrative expenses incurred by a Minister of the Crown for the purposes of this Act (including the reasonable charges of returning officers) shall be defrayed out of moneys provided by Parliament.

Exclusion of legal proceedings.

Expenses.

6. This Act may be cited as the Referendum Act 1975.

Short title.

SCHEDULE**FORM OF BALLOT PAPER**

The Government have announced the results of the renegotiation of the United Kingdom's terms of membership of the European Community.

**DO YOU THINK THAT THE UNITED KINGDOM SHOULD
STAY IN THE EUROPEAN COMMUNITY (THE COMMON
MARKET)?**

YES☐**NO**☐